ADMIRE ZARANYIKA
versus
THE STATE

HIGH COURT OF ZIMBABWE
SIZIBA J
MUTARE, 31 March 2026

**CHAMBER APPLICATION FOR CONDONATION**

*M. Mavhiringidze,* for the applicant
*T. Muuya*, for the respondent

SIZIBA J:

1. This is an opposed chamber application for condonation of late noting of an appeal and leave to note an appeal out of time. The applicant was convicted of robbery by Murambinda Magistrates Court in terms of s 126 (1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. He was sentenced on the 19th of September 2025 to five years imprisonment of which ten months were suspended on condition of good behavior while two months were suspended on condition of restitution of the US$24 or its Zig equivalent by the 23rd of September 2025. The four years was to take effect. The appellant had timeously filed a notice of appeal against both conviction and sentence under HCMTCR1637/25 but this did not avail him as that purported notice of appeal was struck off the roll on the 26th of November 2026 for being fatally defective. The applicant then filed the present application on the 25th of March 2026.

2. The applicant's explanation for delay in noting his appeal to this court is partially explained by the history narrated above in filing a fatally defective notice of appeal. The delay from the 26th of November 2025 to March 2026 has been explained on the basis of lack of means to engage applicant's current legal practitioners after jettisoning his previous legal practitioners. The excuse of lack of means to pay one's lawyers alone has been rejected as a reasonable explanation for the delay in this jurisdiction on the basis that the procedural rules of our courts allow self – actors to file papers and also have a right of audience before courts. See *Tewende and Another* v *Mupandawana*

*and Others* SC100/25. The result is that no acceptable explanation has been proffered to this court for the four months delay to file this application as from 26 November 2025. The total delay in filing a proper appeal by the applicant from the day of his sentence is now a period of six months and that delay is unreasonable and it militates against the principle of finality in litigation.

3. Another relevant inquiry is on the prospects of success. It is trite that a weak explanation for the delay can be compensated by good prospects of success. The written submissions by the respondent took issue with the grounds of appeal in terms of the draft notice of appeal attached to the applicant's founding affidavit. However, this objection was not pursued during the hearing. Although some of the grounds of appeal are not clear and concise and especially the first ground, some of the grounds can be related to and as such it will be proper to consider the merits of the applicant's case as a whole.

4. The basis of the applicant's intended appeal is an attack to the credibility and consistency of the State witnesses who testified in the court *a quo*. The court *a quo* is being accused of having relied on the evidence of a single witness when the offence was committed in public. It is also being contended that the conviction was unsafe as a result of the court *a quo* having treated the evidence of applicant's assault upon the complainant as constituting use of force for purposes of committing robbery. Regarding the appeal against sentence, it is being argued that the five - year imprisonment sentence with four years being effective is too severe and that it induces a sense of shock.

5. The allegations against the applicant in the court *a quo* were that on the 29th of August 2025 at Kudenga Bottle Store in Murambinda, he unlawfully and intentionally threatened to stab the complainant with a knife and also assaulted him with fists and booted feet and thereby forcing him to relinquish a sum of US$24 to him. The applicant's defense version was that the complainant owed him US$2 which he had borrowed from him in 2024. It was common cause that prior to the incident at the bar, the applicant and the complainant had performed a piece job of offloading goods at

Vast Africa Company and they were paid US$4 each in the company of three others. The complainant maintained that the applicant had robbed him of his money while the applicant's version was that he demanded his money which he was owed. In response, the complainant insulted him and he then assaulted him and he was handed his money. The trial court found that it was common cause that the applicant assaulted the complainant and he was given money. The court also found that the applicant was holding a knife in attacking the complainant which scarred the police constabulary and others from interfering with the applicant.

6. What is very strange about the applicant's contestation about the conviction on a robbery charge is that he concedes having assaulted the complainant at the bar which assault induced the complainant to involuntarily give him money. If such concession is being made by the applicant as appears in the record of proceedings, his founding affidavit as well as oral submissions by *Mr Mavhiringidze*, then one wonders what the appeal against conviction is all about. If what the applicant accepts having done does not constitute robbery, then what other act should constitute robbery. This should be elementary if regard is had to s 126 (1) (a) and (b) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] which provides as follows:

*"**126 Robbery***

*(1) Any person who steals or does any act constituting the crime of unauthorised borrowing or use of property shall be guilty of robbery if he or she intentionally uses violence or the threat of immediate violence–*

*(a) immediately before or at the time he or she takes the property, in order to induce the person who has lawful control over the property to relinquish his or her control over it; or*

*(b) immediately after he or she takes the property, in order to prevent the person who had lawful control over the property from recovering his or her control over it."*

7. Any unlawful taking of property that is preceded or followed by an attack or a threat of such attack simply constitutes robbery. The submission by *Mrs Muuya* that a crime of robbery was committed even going by facts that are common cause represents the proper interpretation of the law in this jurisdiction.

8. The submission by *Mr Mavhingidze* that the applicant's actions in obtaining money from the complainant after attacking him were mere self help under provocation for refusal to pay him his money must be rejected by this court. Also to be rejected is the submission that the applicant lacked the requisite mental element to rob because he was insulted and provoked by the complainant. Furthermore, the question of whether the applicant's conduct should be assessed as an unsophisticated person living in a rural area of Murambinda is totally irrelevant to the question of his conviction.

9. The argument that the applicant was only given US$2 and not US$24 is equally without merit. He only talked of being owed US$2 by the complainant in his defense outline. He did not challenge the complainant in cross examination that he obtained only US$2 from him and not US$24. He only challenged the US$24 without specifically saying that he obtained US$2 from him. Nothing more was said about this alleged US$2 in applicant's evidence in chief as well as under cross examination during the defense case. There would be no factual or evidential basis to then try and persuade this court on appeal to say that the court *a quo* erred in concluding that the complainant was robbed US$24.

10. The applicant's argument that the court *a quo* relied on the evidence of a single witness is misleading as the complainant's evidence was corroborated by the special constabulary who testified first. Furthermore, the applicant was condemned by his own testimony in having accepted that he assaulted the complainant in order to be given money. The result is that the relevant and material facts are common cause. There is no reason at law why he should have been convicted of assault as per *Mr Mavhiringidze*'s submission. He committed robbery. The argument that he would not have robbed someone in broad daylight when there were members of the public who would have protected the complainant is to be totally rejected for being totally unmeritorious in the context of the facts that were proved to have taken place.

11. The last inquiry is whether there is merit in attacking the court *a quo* for having imposed the five - year sentence upon the applicant. I find no merit in such a complaint. The court *a quo* relied on the case of *S* v *Madondo* 1989 (1) ZLR 300 (HC)

in having taken the position that sentences for robbery should commence from a minimum threshold of around five years imprisonment.

12. Although *Mr Mavhirindidze* lamented that that case was decided long back before the Sentencing Guidelines of 2023 were enacted, he did not assist this court with any other recent case law authority in this jurisdiction which departs from such position and neither did he say in terms of what provision in the Sentencing Guidelines the court *a quo* would have misdirected itself in sentencing the applicant. He downplayed the gravity of the offence of robbery in saying that the amount stolen was trivial. Sight cannot be lost to the fact that a knife was used in the process. The court *a quo* remarked correctly that it was just by God's grace that the complainant had dodged being stabbed by the knife during the incident. The crime of robbery is inherently cruel and dangerous by its very nature and it is always traumatizing to any victim. It is a heinous crime that should never be trivialized by a court of law in any civilized society. Robbers are social misfits who should always be removed from society for the safety of the public by way of custodial sentences. Such a tough stance also serves to deter those who may be tempted to think that this type of criminal conduct is rewarding. Custodial sentences are therefore very much appropriate and necessary for these dangerous criminals and the five - year minimum threshhold before any suspension as recommended by this court in *S* v *Madondo* (*supra*) in 1989 still serves a good purpose. I do not therefore find anything that may by any chance persuade this court to say that the court *a quo* misdirected itself in sentencing the applicant. The submission that a sentence in the form of a fine or community service is warranted in an offence of robbery is not to be entertained by a court of law on any ordinary day unless there are very special circumstances that do not exist in the matter at hand.

13. For the reasons articulated above, I see no reason why the application at hand should be granted. The appeal is doomed to fail for lack of merit and there is nothing to compensate for the weak or unreasonable explanation for the delay in appealing. The application is accordingly dismissed for lack of merit.

*Mavhiringidze and Mashanyare,* applicants' legal practitioners
*National Prosecuting Authority,* respondent's legal practitioners